



Torres Strait Fisheries (Finfish) Management Instrument 2020

made under section 16 of the

Torres Strait Fisheries Act 1984

Compilation No. 1

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Includes amendments up to: F2022L00476

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Prepared by the Office of Parliamentary Counsel, Canberra

About this compilation

This compilation

This is a compilation of the *Torres Strait Fisheries (Finfish) Management Instrument 2020* that shows the text of the law as amended and in force on 1 May 2022 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Legislation Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the series page on the Legislation Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the series page on the Legislation Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

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Part 1—Introduction

1 Name

This instrument is the *Torres Strait Fisheries (Finfish) Management Instrument 2020*.

3 Authority

This instrument is made under section 16 of the Act.

Note: The Authority may exercise the powers of the Minister under section 16 of the Act in respect of a Protected Zone Joint Authority fishery: see paragraph 35(1)(a) of the Act.

4 Definitions

Note: A number of expressions used in this instrument are defined in section 3 of the Act, including the following:

- (a) community fishing;
- (b) fish;
- (c) traditional inhabitant;
- (d) traditional fishing.

In this instrument:

Act means the *Torres Strait Fisheries Act 1984*.

AEST means Australian Eastern Standard Time.

bait net means a fishing net:

- (a) known as a cast net that is not more than 6 metres in diameter and having a mesh size no larger than 28 millimetres; or
- (b) known as a mesh net or seine net that is not more than 400 metres in length and having a mesh size of at least 12 millimetres but not more than 45 millimetres.

barramundi means finfish of the species *Lates calcarifer*.

finfish means fish of the superclass Pisces other than:

- (a) mackerel; and
- (b) tuna (*Thunnus* spp.); and
- (c) skipjack tuna (*Katsuwonus pelamis*); and
- (d) fish of the family Bramidae (known as pomfrets); and
- (e) fish of the families Istiophoridae and Xiphiidae (known as billfish).

finfish fishery means the area of the finfish fishery prescribed in item 4 of the table in Schedule 2 to the Regulations.

finfish licensed person means a person who is a ***licensed person*** that is authorised to take, process or carry finfish in the finfish fishery.

fishing apparatus means any combination of:

- (a) hand held fishing lines; and
- (b) fishing rods; and
- (c) mechanically operated fishing reels and lines.

licensed person means a person who has been granted a licence under subsection 19(2), 19(3) or 19(4A) of the Act, or transferred such a licence under section 25 of the Act, that authorises the taking, processing or carrying of fish.

line fishing methods means fishing by hand using fishing apparatus where:

- (a) each fishing line has no more than 6 hooks attached to it; and
- (b) no more than 3 fishing apparatus are being used for fishing from the licensed person's boat.

mackerel means species of fish that are:

- (a) grey mackerel (*Scomberomorus semifasciatus*); and
- (b) school mackerel (*Scomberomorus queenslandicus*); and
- (c) shark mackerel (*Grammatorcynus bicarinatus*); and
- (d) Spanish mackerel (*Scomberomorus commerson*); and
- (e) spotted mackerel (*Scomberomorus munroi*).

mackerel fishery means the area of the Spanish mackerel fishery prescribed in item 7 of the table in Schedule 2 to the Regulations.

mackerel licensed person means a person who is a licensed person that is authorised to take, process or carry mackerel in the mackerel fishery.

mesh net includes a fishing net suspended vertically through a water column that is known as a gill net, mesh net or seine net that is neither fixed nor hauled, but does not include a fishing net that is hauled by the use of a boat for taking fish.

mesh size means:

- (a) or a fishing net known as a knotted mesh net—the average distance, across 10 meshes at least 30 centimetres apart, between the inner edges of 2 diagonally opposite knots when the net is held taut; and

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- (b) for a fishing net known as a knotless mesh net—the average distance, across 10 meshes at least 30 centimetres apart, between the inner edges of 2 diagonally opposite corners of a mesh when the net is held taut.

PZJA Arrangement means the document titled “*Arrangement between the Commonwealth and the State of Queensland under section 31 of the Torres Strait Fisheries Act 1984*” dated 17 March 1999 and published on the Federal Register of Legislation, as that document exists at the commencement of this instrument.

Note: The PZJA Arrangement could in 2020 be viewed on the website of the Federal Register of Legislation (<https://www.legislation.gov.au/Details/F2008B00750>).

Regulations means the *Torres Strait Fisheries Regulations 1985*.

seine net means a fishing net known as a beach net or a haul seine net.

shark means fish of the Subclass Elasmobranchii, excluding:

- (a) electric rays (Order Torpediniformes); and
- (b) skates (Order Rajiformes); and
- (c) stingrays (Order Myliobatiformes).

5 Length of a fish

- (1) For the purposes of this instrument, the length of a fish is taken to be the longest of the following measurements:
 - (a) the point of the snout to the end of the tail fin; or
 - (b) the point of the snout to the end of the caudal fin; or
 - (c) the tip of the lower jaw to the end of the tail fin; or
 - (d) the tip of the lower jaw to the end of the caudal fin.

7 Prohibition—general

- (1) The taking, processing or carrying of finfish, other than barramundi, by a person in the finfish fishery is prohibited.

Note: This prohibition does not apply to traditional inhabitants engaged in traditional fishing due to application of the PZJA Arrangement.

- (2) A person is exempt from the prohibition in subsection (1) when:
 - (a) the person is a finfish licensed person; or
 - (b) the person is a mackerel licensed person who:
 - (i) has taken finfish to use as bait with the use of a bait net; and

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- (ii) does not possess on their boat any more than 20 kilograms of finfish in addition to any finfish taken as bait under subparagraph (i); or
- (c) the person is a licensed person who is not a finfish licensed person or a mackerel licensed person, and the person does not possess on their boat any more than 20 kilograms of finfish or mackerel.

8 Prohibition—barramundi

- (1) The taking, processing or carrying of barramundi by a person in the finfish fishery is prohibited.

Note: This prohibition does not apply to traditional inhabitants engaged in traditional fishing due to application of the PZJA Arrangement.

- (2) Subject to section 16 of this instrument, a person is exempt from the prohibition in subsection (1) when:

- (a) the person is a finfish licensed person; and
- (b) the person is a traditional inhabitant conducting community fishing.

Note: Any barramundi that are taken by a person pursuant to this subsection must meet the minimum and maximum size limits outlined in section 10 of this instrument and be outside the seasonal closure outlined in section 16 of this instrument.

9 Prohibition—finfish subject to minimum length requirements

The taking, processing or carrying of finfish specified in an item in column 1 of the table that is shorter in length than the minimum length specified in column 2 of the table by a person in the finfish fishery is prohibited.

Note: This prohibition does not apply to traditional inhabitants engaged in traditional fishing due to application of the PZJA Arrangement.

Item	Column 1 Finfish	Column 2 Minimum length (centimetres)
1	Barramundi cod (<i>Cromileptes altivelis</i>)	45
2	Black kingfish (<i>Rachycentron canadum</i>)	75
3	Coral trout (<i>Plectropomus</i> spp.) other than ocean trout (<i>Plectropomus laevis</i>)	38
4	Dolphinfish (<i>Coryphaena</i> spp.)	45
5	Grass sweetlip (<i>Lethrinus laticaudis</i>)	30
6	Hussar (<i>Lutjanus adetii</i>)	25
7	Teraglin jew (<i>Atractoscion aequidens</i>)	38
8	Large-mouthed nannygai (<i>Lutjanus malabaricus</i>)	40
9	Large-scale sea perch (<i>Lutjanus johnii</i>)	35
10	Mangrove jack (<i>Lutjanus argentimaculatus</i>)	35
11	Moses perch (<i>Lutjanus russellii</i>)	25

Item	Column 1 Finfish	Column 2 Minimum length (centimetres)
12	Mullocky (<i>Argyrosomus japonicus</i>)	45
13	Pearl perch (<i>Glaucosoma scapulare</i>)	35
14	Purple tusk-fish (<i>Choerodon cephalotes</i>)	30
15	Red emperor (<i>Lutjanus sebae</i>)	55
16	Red throat emperor (<i>Lethrinus miniatus</i>)	38
17	Rosy job-fish (<i>Etelis</i> spp. and <i>Pristipomoides</i> spp.)	38
18	Silver jewfish (<i>Nibea soldado</i>)	45
19	Silver teraglin (<i>Otolithes ruber</i>)	30
20	Small-mouthed nannygai (<i>Lutjanus erthropterus</i>)	40
21	Snapper (<i>Pagrus auratus</i>)	35
22	Spangled emperor (<i>Lethrinus nebulosus</i>)	45
23	Spotted or black jewfish (<i>Protonibae diacanthus</i>)	45
24	Stripey (<i>Lutjanus carponotatus</i>)	25
25	Venus tusk-fish (<i>Choerodon venustus</i>)	30
26	Wahoo (<i>Acanthocybium solandri</i>)	75
27	Yellowtail kingfish (<i>Seriola lalandi</i>)	50
28	Bar-tailed flathead (<i>Platycephalus indicus</i>)	30
29	Burnett salmon (<i>Polydactylus macrochir</i>)	40
30	Cooktown salmon (<i>Eleutheronema tetradactylum</i>)	40
31	Golden lined whiting (<i>Sillago analis</i>)	23
32	Luderick (<i>Girella tricuspidata</i>)	23
33	Pikey bream (<i>Acanthopagrus pacificus</i>)	23
34	Sand flathead (<i>Platycephalus endrachtensis</i>)	30
35	Sand whiting (<i>Sillago ciliata</i>)	23
36	Sea mullet (<i>Mugil cephalus</i>)	30
37	Small spotted grunter bream (<i>Pomadasys agenteus</i>)	30
38	Spotted grunter bream (grunter) (<i>Pomadasys kaakan</i>)	30
39	Tailor (<i>Pomatomus saltatrix</i>)	30
40	Tarwhine (<i>Rhabdosargus sarba</i>)	23
41	Yellow-finned bream (<i>Acanthopagrus australis</i>)	23

10 Prohibition—finfish subject to minimum and maximum length requirements

The taking, processing or carrying of finfish specified in an item in column 1 of the table that is:

- (a) shorter in length than the minimum length specified in column 2 of the table; or

(b) longer in length than the maximum length specified in column 3 of the table
by a person in the area of the finfish fishery is prohibited.

Note: This prohibition does not apply to traditional inhabitants engaged in traditional fishing due to application of the PZJA Arrangement.

Item	Column 1 Finfish	Column 2 Minimum length (centimetres)	Column 3 Maximum length (centimetres)
1	Barramundi (<i>Lates calcarifer</i>)	58	120
2	Blue-spot trout (<i>Plectropomus laevis</i>)	50	80
3	Estuary cod (<i>Epinephelus</i> sp.)	35	120
4	Leopard or squaretail trout (<i>Plectropomus areolatus</i>)	38	62
5	Red bass (<i>Lutjanus bohar</i>)	45	55

11 Prohibition—finfish subject to maximum length requirements

The taking, processing or carrying of a shark that is longer than 200 centimetres in length in the finfish fishery is prohibited.

Note 1: This prohibition does not apply to traditional inhabitants engaged in traditional fishing due to application of the PZJA Arrangement.

Note 2: The prohibition in section 12 of this instrument also applies to hammerhead shark, grey nurse shark and tiger shark.

12 Prohibition—no take species

The taking, processing or carrying of the following finfish by a person in the finfish fishery is prohibited:

- (a) potato cod (*Epinephelus tukula*); and
- (b) Queensland groper (*Epinephelus lanceolatus*); and
- (c) chinaman fish (*Symphorus nematophorus*); and
- (d) paddletail (*Lutjanus gibbus*); and
- (e) humphead Maori wrasse (*Cheilinus undulatus*); and
- (f) hammerhead shark (*Sphyrna lewini*); and
- (g) grey nurse shark (*Carcharias taurus*); and
- (h) tiger shark (*Galeocerdo cuvier*).

Note: This prohibition does not apply to traditional inhabitants engaged in traditional fishing due to application of the PZJA Arrangement.

13 Prohibition—shark finning

The processing of a shark by removing the fins from the shark and discarding the remainder of the shark into the sea by a person in the finfish fishery is prohibited.

Note: This prohibition does not apply to traditional inhabitants engaged in traditional fishing due to application of the PZJA Arrangement.

14 Prohibition—gear restrictions

The taking, processing or carrying of finfish by a person in the finfish fishery is prohibited by a fishing method other than:

- (a) line fishing methods; or
- (b) a bait net.

Note: This prohibition does not apply to traditional inhabitants engaged in traditional fishing due to application of the PZJA Arrangement.

15 Prohibition—permanent closures

Pursuant to paragraph 16(1)(a) of the Act, the taking of finfish is prohibited by line fishing methods in the area of the finfish fishery commencing south of Latitude 09°34' 31" S and west of Longitude 142°31'49" E.

Note: This prohibition does not apply to traditional inhabitants engaged in traditional fishing due to application of the PZJA Arrangement.

16 Prohibition—seasonal closure

The taking of barramundi by a person in the finfish fishery is prohibited during the period commencing at 12pm AEST on 1 November in any year and ending at 12pm AEST on 1 February in the following year.

Note 1: This prohibition does not apply to traditional inhabitants engaged in traditional fishing due to application of the PZJA Arrangement.

Note 2: This prohibition applies to a person even if the exemption outlined in subsection 8(2) of this instrument applies.

Endnotes

Endnote 1—About the endnotes

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnote 2—Abbreviation key

ad = added or inserted	o = order(s)
am = amended	Ord = Ordinance
amdt = amendment	orig = original
c = clause(s)	par = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
Ch = Chapter(s)	prev = previous
def = definition(s)	(prev...) = previously
Dict = Dictionary	Pt = Part(s)
disallowed = disallowed by Parliament	r = regulation(s)/rule(s)
Div = Division(s)	reloc = relocated
ed = editorial change	renum = renumbered
exp = expires/expired or ceases/ceased to have effect	rep = repealed
F = Federal Register of Legislation	rs = repealed and substituted
gaz = gazette	s = section(s)/subsection(s)
LA = <i>Legislation Act 2003</i>	Sch = Schedule(s)
LIA = <i>Legislative Instruments Act 2003</i>	Sdiv = Subdivision(s)
(md) = misdescribed amendment can be given effect	SLI = Select Legislative Instrument
(md not incorp) = misdescribed amendment cannot be given effect	SR = Statutory Rules
mod = modified/modification	Sub-Ch = Sub-Chapter(s)
No. = Number(s)	SubPt = Subpart(s)
	<u>underlining</u> = whole or part not commenced or to be commenced

Endnotes

Endnote 3—Legislation history

Endnote 3—Legislation history

Name	Registration	Commencement	Application, saving and transitional provisions
Torres Strait Fisheries (Finfish) Management Instrument 2020	25 Sept 2020 (F2020L01216)	30 Dec 2020 (s 2(1) item 1)	
Torres Strait Fisheries Amendment (Finfish) Management Instrument 2022	1 Apr 2022 (F2022L00476)	1 May 2022 (s 2(1) item 1)	—

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
Part 1	
s 2	rep LA s 48D
s 4	am F2022L00476
s 6	rep LA s 48C
s 15	rs F2022L00476
	ed C1
Schedule 1	rep LA s 48C

Endnotes

Endnote 5—Editorial changes

Endnote 5—Editorial changes

In preparing this compilation for registration, the following kinds of editorial change(s) were made under the *Legislation Act 2003*.

Section 15

Kind of editorial change

Give effect to the misdescribed amendment as intended

Details of editorial change

Schedule 1 item 2 of the *Torres Strait Fisheries Amendment (Finfish) Management Instrument 2022* instructs to repeal and substitute section 15.

This amendment repeals the section heading but does not replace it.

This compilation was editorially changed to reinsert the section 15 heading and give effect to the misdescribed amendment as intended.